

Form 12
REQUEST FOR CONTESTED SUMMARY HEARING

Rule 23

In the Magistrates' Court
of Victoria at [venue]

Court Ref:

Informant:

Accused:

☒
☐

The accused is not legally represented

The accused is represented by: _____

Estimated hearing time:

Has a summary case conference been held?

Does the accused consent to summary jurisdiction?

☒
☒

Yes

☐
☐

No

No

OFFENCESAre there co-offenders? ☐ Yes ☒ No

If yes, names of co-offenders: _____

Is it an alleged sexual offence? ☐ Yes ☒ NoIs it alleged that the offence arises out of an act of family violence? ☐ Yes ☒ No**ISSUES IN DISPUTE**

Factual arguments

YES

NO

☒☐

Alibi

YES

NO

☐☒

Question of law

☐☒Voir dire/Preliminary
issues for determination☐☒

Self defence

☐☒If yes to any of the above, description of issue (e.g. admissibility of all/part of VARE or ROI):

YES

NO

Application for a confidential communication?

(section 32C *Evidence (Miscellaneous Provisions) Act*
1958)☐☒

If yes, date of application: _____

Application in relation to sexual activities of the
complainant?(sections 342, 344 *Criminal Procedure Act* 2009)☐☒

If yes, date of application: _____

Tendency/coincidence notices?

If yes, date to be served by: _____

☐☒

Hearsay notices?

If yes, date to be served by: _____

☐☒

YES NO

Material not yet provided?

If yes, provide details:

☐ ☒

Admissions/concessions?

If yes, provide details:

ID card accepted as operating his private property, location in road.

☒ ☐

Ground rules hearing to be held?

If yes, date to be held:

☐ ☒

WITNESSES REQUIRED

Prosecution:

Informant

Corroborator

Other police officer

Civilian

Expert

Child witness

Child witness service booked?

Cognitively impaired witness

Remote booked?

Witness in custody

Witness in other location

Protected witness

Remote booked?

Order made for Victoria Legal

Aid to cross-examine witness

(section 357 *Criminal*

Procedure Act 2009)?

YES

NO

☒

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Accused:

Civilian

Expert

Child

YES

NO

☐

☒

☐

☐

☐

☐

Will compellability of family members arise?
(section 18 *Evidence Act 2008*)

Legal advice arranged?

Will self-incrimination arise?

(section 128 *Evidence Act 2008*)

YES

NO

☐

☒

☐

☒

☐

☒



Legal advice arranged?

YES	NO
☐	☒

FORMAT OF EVIDENCE/EXHIBITS

CCTV

Body worn camera footage

Other exhibits in electronic form

YES	NO
☐	☒
☐	☒
☒	☐

RESOURCES REQUIRED

Audiovisual link

Interpreter

If yes, language required: _____

YES

☐
☐

NO

☒
☒

Remote witness facility

DVD/laptop

YES

☐
☒

NO

☒
☐

REQUEST MATTER BE LISTED FOR A CONTESTED HEARING

faapei Suninla # faapeis@yahoo.com.au
[Name and signature of legal practitioner of accused OR accused]

sc/44634.
[Name and signature of prosecutor]

Note: If the accused is not legally represented, this form is to be completed by the prosecution relevant to the information in their possession.
This form is to be filed with the Court Coordinator at the relevant venue.

Werribee Magistrates' Court - PROSECUTIONS BRIEF COVER SHEET

WERRI

PROSECUTIONS OFFICE
134 Princes Hwy, Werribee, 3030
DX: 212878
PHONE: 8533 0101
FAX:

SUNIULA

ACCUSED

FAAPOI

PROSECUTIONS REF. NO

24-B-002846455

INFORMANT:

SHEEHAN, Brett - SGT

VP28199

STATION:

Traffic Camera Office (OSDTCO)

PHONE:

9224 4304

DX:

LVL 1 277 William Street, Melbourne, 3000

SOLICITOR:

PHONE NUMBER:

BARRISTER:

PHONE NUMBER:

OFFICER IN CHARGE

1. FAILURE TO ANSWER BAIL/SUMMONS BY ACCUSED

Magistrates'/Children's Court on

1. Warrant of Apprehension issued and attached.

2. Informant to take out Warrant.

For attention by informant.

2. MATTER NOT LISTED

☐ To informant for attention

PROSECUTOR.....

RANK REG NO

VERIFICATION OF SUMMONS/CHARGE SHEET FILED AT COURT

- ☐ Where summons filed with registrar other than appropriate registrar, copy filed with appropriate registrar within 7 days of commencement of proceedings.
- ☐ Charge sheet signed
- ☐ Charge is correct - appropriately worded
- ☐ Summons served at least 14 days
- ☐ Declaration/Affidavit of Service filed with appropriate registrar at least 7 days before mention date

PROSECUTOR.....

RANK REG NO

COURT STATUS

DATE	TYPE	COURT	INITIALS
22/04/2025	Mention	Werribee	
5/6/25	FME	NSS	CMM

OFFICER IN CHARGE

PROSECUTIONS

DATE: ____/____/____

MATTER FINALISED

See charge record / Result of charge if attached. If not attached, obtain results from LEAP.

☐ Exclusion Order - made / not made / reason...

DISPOSAL / CONFISCATION ORDER (where relevant)

☐ Order made and attached

☐ Order not made (reason)

RESTITUTION ORDER (where relevant)

☐ Order made

☐ Order not made (reason)

CONTEST MENTION (where relevant)

☐ Plea of Guilty

☐ Resolved Ex-parte

☐ All Charge(s) withdrawn with Cost

☐ All Charge(s) withdrawn with no Cost

CONTESTED HEARING (where relevant)

☐ PNG resolved to PG

☐ Conviction Obtained (on at least one charge)

☐ All Charge(s) withdrawn with Cost

☐ All Charge(s) withdrawn with no Cost

☐ All Charge(s) Dismissed

Result

Plea

Magistrate

FORENSIC SAMPLE APPLICATION (where relevant)

☐ Granted - Report & extracts to EPIT

☐ Refused - Report to EPIT

☐ Previously profiled

☐ Charge Withdrawn

SEX OFFENDER REGISTRATION ACT APPLICATION (where relevant)

☐ Granted ☐ Refused (reason)

VEHICLE IMPOUNDMENT APPLICATION (where relevant)

☐ Granted ☐ Refused (reason)

For Filing

PROSECUTOR.....

RANK REG NO

PROSECUTIONS OFFICE
134 Princes Hwy, Werribee, 3030
DX: 212878
PHONE: 8533 0101
FAX:

ACCUSED

FAAPOI

24-B-002846455

PROSECUTIONS REF. NO

MATTERS TO BE CHECKED

- ☐ Date specified in Charge is correct
 - ☐ Location nominated in Charge is correct
 - ☐ There is sufficient evidence to identify the accused as the offender with respect to each charge
 - ☐ All other Points of Proof can be proven
 - ☐ Charge is appropriately worded
 - ☐ Certificates and/or extracts properly served
 - ☐ Taped interview has been listened to
 - ☐ Taped interview has NOT been listened to (provide reason below)
 - ☐ Crimes Family Violence related matter, Sect 69, 70, 243 & 244 FVPA to be considered

PROSECUTOR: _____ SIGNATURE: _____ DATE: _____

[illegible]

FV/SA CODE	Not Applicable	Emerg Worker ☐	Weapons ☐	Child ☐	Age
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PROCESS/ DISPOSITION	☐ NTA ☒ Summons	☐ Arrest ☐ Remand	☐ Bail	[Reg. No. of member submitting L22]
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BRIEF HEAD	ACCUSED SURNAME	SUNIULA				
	First Name	Faapoi	D.O.B.	13/04/1965	MNI No	093541464
	Address	23 Mundara Drive, WYNDHAM VALE VIC			Postcode	3024

MAJOR CHARGE	1. Exceed Speed Limit By 10 km/h Or More But Less Than 15 km/h - 749AWV	Total Number of Charges	1
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Other Charges	2.	
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DATE OF CHARGE		DATE OF OFFENCE	07/07/2024
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MENTION COURT	Werribee	MENTION DATE	22 APR 2025
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Co - Accused? ☒ No ☐ Yes	Names:	Brief Coordinator Reg. No.	
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BRIEF BOOK	Station Code OSDTCO	Number 24-B-914589799	AUDIO / VIDEO RECORDING	Attendance Number N/A	Quantity of Discs	Recording Length min
PROPERTY BOOK/ PALM ID		DREC		Reference		Recording Length
Contemporaneous Notes? ☒ No ☐ Yes	Copy attached? ☐ No ☐ Yes	Number of Pages Seen by Supervisor		Supervisor Rank / No.		
Supervisors' Explanation		Supervisor Rank /No.				

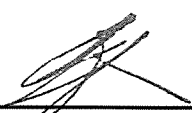
INFORMANT	Brett SHEEHAN L/S/C 28199	
Name / Rank / No		
Station	Traffic Camera Office – Road Policing Enforcement Division	Ph. (03) 9067 0601

WITNESS	Nil Witnesses	
Name / Rank / No		
Station		

NOMINAL INFOR.	
Name / Rank / No	
Station	Ph.

BRIEF MOVEMENT			
DATE	DESTINATION	COMMENTS	REG. NO
	For Authorisation	Forwarded for recording, Checking & Authorisation	
- 3 DEC 2024	Authoriser	Prosecution <u>AUTHORISED</u> / NOT AUTHORIZED	27240
	Listing Clerk	Assignment of Court Date	
	Informant	Process Issued for Service	
		Brief forwarded to PROSECUTIONS	

Disclosure brief – <u>must</u> be served as per policy or legislation and an accused copy <u>must</u> be attached to the prosecution brief	
Brief completed as per VPMG Brief Preparation and management	

Informant Signature:		Name: Brett SHEEHAN Rank/No.: L/S/C 28199	Date: 09 DEC 2024
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Accused: **SUNIULA Faapoi**

Informant: **Brett SHEEHAN L/S/C 28199**

TO BE COMPLETED BY SUB-OFFICER / AUTHORISING MEMBER (Cross boxes applicable to responses)

- ☐ Yes ☒ No Forensic Procedure Offence?
☐ Yes ☒ No ☐ Forensic Procedure - Consent Sample Obtained?
☐ Yes ☐ No ☒ LEAP DNA Status: Profiled?
☐ Yes ☐ No Correct MNI recorded on brief head and charges?
☒ Yes ☐ No Correct charges laid?
☒ Yes ☐ No Charges correctly worded?
☐ Yes ☐ No ☒ I have listened to the recorded interview?
☒ Yes ☐ No I have reviewed all available evidence?
☒ Yes ☐ No Points of Proof are covered?
☒ Yes ☐ No Summary accurately reflects the Brief of Evidence?
☒ Yes ☐ No ☐ All relevant extracts are attached?
☐ Yes ☐ No ☒ Best and correct method of forfeiture/restitution/disposal attached?
☒ Yes ☐ No The brief is complete as per VPMG Brief preparation and management?
* ☒ Yes ☐ No Is there a reasonable prospect of conviction?
* ☒ Yes ☐ No Is prosecution in the public interest as per the DPP Prosecutorial Discretion policy?

* [Note: Both criteria MUST be met prior to the authorisation/commencement of a criminal proceeding]

Is the accused suitable for a diversion? ☐ Yes ☒ No (Provide Reason if not suitable)

The Accused has elected to appear in Court

Does the accused have previous involvement not recorded on brief? (Infringements, Cautions, Diversions etc.)

Caution Recommended ☐ Yes ☒ No
Diversion Recommended ☐ Yes ☒ No
Prosecution Recommended ☒ Yes ☐ No

The brief has been considered in accordance with the Victoria DPP Prosecutorial Discretion Policy. All available evidence has been checked by me.

Signature:

Name:

Rank / No:

MICHAEL PICKERING
SERGEANT 27240

Date: **- 3 DEC 2024**

TO BE COMPLETED BY AUTHORISING MEMBER (Cross boxes applicable to responses)

Processed by: **ARREST**

- ☐ Recommend withdrawal of some or all charges [attach report]*
☐ Authorised prosecution of all charges

Proceed by: **SUMMONS ****

- ☒ Authorised prosecution of charges
☐ No charges authorised [Report to Informant / Notification of CDEB]

Proceed by: **DIVERSION / CAUTION**

- ☐ Authorised for Diversion (Diversion report MUST be attached)
☐ Authorised for Caution

Is the accused **SUITABLE** for diversion?

☐ Yes ☒ No

Is **VICTIM NOTIFICATION** Required?

☐ Yes

☒ No

☐ Other [attach report]

Signature
Name
Rank / No
Date

MICHAEL PICKERING
SERGEANT 27240
+ 3 DEC 2024

* Prosecutors are the only personnel authorised to withdraw charges and they must be advised ASAP. The withdrawal of some or all of the charges after proceedings have commenced must comply with the VPM.

** NB During the process of determining authorisation of summons charges, if any charges are not authorised and/or charges require alteration, then endorse comment in the 'Brief Movement' section, or on a separate report. Only complete this section after final determination.

VP Form L16 - Traffic

ACCUSED

MNI No.

093541464

1st Name

Faapoi

FAMILY
NAME

SUNIULA

2nd Name

DOB

13/04/1965

Sex: ☒Male ☐Female ☐Company

[illegible]

PROSECUTOR TO COMPLETE

ACTUAL
COURT

ACTUAL
COURT DATE

DID ACCUSED
APPEAR?

☐ YES ☐ NO

EX PARTE
HEARING?

☐ YES ☐ NO

CROSS BOX TO INDICATE IF LODGED
☐ APPEAL ☐ RE HEARING

BRIEF FINALISED ☐ YES ☐ NO

PROSECUTOR
Reg. No.

THIS FORM MUST ONLY BE USED ON A BRIEF WHICH COMPRISES OF TRAFFIC CHARGES ONLY
in all other instances, the LEAP "Charge Sequence & result of Charge report" (@ LFR02a) must be used on the police brief
Results must NOT be sent to VicRoads

CHARGE – SHEET AND SUMMONS

CDEB / Police Brief copy

FV/SA Code: Not Applicable

Magistrates' Court Criminal Procedure Rules 2019 Form 3 Rule 13 (c)

TO THE ACCUSED		Unsuitable Dates: 20 November 2024	
Faapoi SUNIULA 23 Mundara Drive, WYNDHAM VALE VIC 3024 Mobile Phone No.: 0438652476 Email Address: faapois@yahoo.com.au		Preferred Dates:	
		M [X]	F []
		Co. []	Date of Birth 13/04/1965
You have been charged with an offence against the law. Read these pages to see what you must do.		Registration No.	1HS5XS
		State	VIC
MNI / JAID 093541464		Licence No.	95402783
		State	VIC

Details of the charge against you

What is the charge?	1. The Accused at Werribee on 07/07/2024 being the driver of a vehicle did drive at a speed over the speed-limit applying to the driver for the length of road where the accused was driving, namely Princes Highway, between Princes Court and Derrimut Road, to which a Speed Limit Sign of 60 kilometres per hour applied. Detected speed: 75 km/h Alleged speed: 72 km/h			
	Sub-Incident No:		Offence Code: 1927	
	Offence Literal: SPEED			
Under what law?	☒ State ☐ Act ☒ Other ☐ C'Vealth ☐ Reg Statutory Rule		Act or Regulation No. SR No. 41/2017 Road Safety Road Rules 2017	Section/Clause (Full Ref.) 20 (1)
Type of Offence	☒ Summary Offence (You should go to Court)		☐ Indictable Offence (You must go to Court)	
Request for Committal Proceeding	☒ No ☐ Yes			
Is this an Infringement offence?	☒ No ☐ Yes - see below			
	[..] Enforcement Review ☐ Infringements Act 2006 s.40		[..] Enforcement Review – special circumstances ☐ Other:	
			If enforcement review, date of service by the Director, Fines Victoria	
Are there more charges?	☒ No ☐ Yes – see “Continuation of Charges” attached.			
Informant	Brett SHEEHAN L/S/C 28199		Phone No:	(03) 9067 0601
Agency and Address	Traffic Camera Office, Level 1, 277 William Street, Melbourne, Vic, 3000			
Email	TCO-CSU@police.vic.gov.au		Fax	
Informant Signature			Date	09 DEC 2024

Prosecution Authorised By:	Reg. No.	27240	Signature:	
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Where will the case be heard	
Where you must go	The ☒ Magistrates' / ☐ Children's Court in Victoria at WERRIBEE
Address	Salisbury St, Werribee Phone No (03) 9087 5730
When	Time: 9.30 am Date: 22 APR 2025

Details about this summons		☒ S 14	
Issued at:	Melbourne	Date	09 DEC 2024
Issued by:	Signature: Brett SHEEHAN Leading Senior Constable 28199 Road Policing Enforcement Division	☐ Registrar ☐ Magistrate ☒ Police Informant	
Charge Filed at	WERRIBEE	by (member)	L/S/C 28199 Emp No
Method of Filing	mail	Date	09 DEC 2024

Prosecutor Copy

Notice Accompanying Preliminary Brief

In the Magistrates' Court of Victoria at

Venue

Place

WERRIBEE

Date of Hearing

22 APR 2025

To the accused

Accused

Family Name

SUNIULA

First Names

FAAPOI

Address

Street Name and No., Suburb/Town

23 MUNDARA DRIVE, WYNDHAM VALE VIC

Postcode

3024

The attached preliminary brief contains the following information, document or thing available at the time of preparation

- ☒ A copy of the charge-sheet setting out the charges against you
- ☐ A copy of the Notice to Appear
- ☒ A statement made by the informant (the person who charged you) personally sworn, signed or attested
- ☒ A copy of your criminal record or a statement that you have no previous convictions
- ☒ Any evidentiary certificate issued under any Act
- ☒ Any information, document or thing that is relevant to the alleged offence that may assist you to understand the evidence against you that is available to the prosecution
- Nil
- ☒ A written notice that the informant refuses to disclose any information, document or thing.
- (Note: In some cases, the informant (the person who charged you) can refuse to give you information, but they must explain why by giving you a notice in writing)

Police Member or Authorised Officer

Signature

Date

09 DEC 2024

Authorised Officer

Name

Brett SHEEHAN

Rank/No

L/S/C 28199

Agency and
Address

Station

Traffic Camera Office

Agency Ref.

Street Name and No.

Level 1. 277 William Street

Suburb/Town.

Melbourne, Vic

Postcode

3000

Telephone

(03) 9067 0601

Fax No.

Email

TCO-CSU@police.vic.gov.au

Preliminary Brief – Statement Made By Informant

Accused **SUNIULA** v Informant **SHEEHAN**

Accused

Name

Family Name

SUNIULA

Given Names

Faapoi

Sex M F Co.
[X] [] []

Date of Birth
13/04/1965

Prior Convictions Yes No
[X] []

Informant

Name

Family Name

SHEEHAN

Given Names

Brett

Rank/Reg No.

L/S/C 28199

Reg. No.

Work Location

Road Policing Enforcement Division – Traffic Camera Office

Telephone

(03) 9067 0601

Co-Accused

Name

Family Name

Given Names

Sex

Date of Birth

Orders / Applications

Forfeiture / Disposal

Forfeiture Order required and form attached

☐ Yes ☒ No ☐ N/A

Witness Costs / Restitution / Compensation

Witness costs, restitution or compensation sought and form attached

☐ Yes ☒ No ☐ N/A

Forensic Procedures (Crimes Act 1958)

Application for forensic sample and form attached - S.464ZFB or ZGF [Juvenile Only]

☐ Yes ☒ No ☐ N/A

Application for forensic sample and form attached - S.464ZF(2) or ZF(2AAA)

☐ Yes ☒ No ☐ N/A

Sex Offender Registration

Proposed action against the accused and form attached

☐ Mandatory ☐ Discretionary ☒ N/A

Contravention of Suspended Sentence

If found guilty accused contravenes a suspended sentence and charge attached

☐ Yes ☒ No ☐ N/A

Exclusion Order (Section 89DE Sentencing Act 1991)

Application for Alcohol Exclusion Order sought and form attached

☐ Yes ☒ No ☐ N/A

Exclusion Order (Part 8A LCRA 1998)

Application for an Exclusion Order sought and form attached

☐ Yes ☒ No ☐ N/A

Motor Vehicle Impound Orders (Road Safety Act 1986)

Forfeiture order for motor vehicle and form attached - S.84U(1)

☐ Yes ☒ No ☐ N/A

Impoundment / immobilisation order and form attached - S.84U(1)

☐ Yes ☒ No ☐ N/A

Forfeiture order for **substituted** motor vehicle and form attached - S.84V(1)

☐ Yes ☒ No ☐ N/A

Impoundment / immobilisation order for **substituted** motor vehicle - S.84U(1)

☐ Yes ☒ No ☐ N/A

Immediate Permit / Licence Ban (Part 6B/6C Road Safety Act 1986)

Accused permit / licence suspended or disqualified and notice attached (brief copy)

☐ Yes ☐ No ☒ N/A

Date suspension / disqualification commenced

Does the victim want to provide a victim impact statement

☐ Yes ☒ No ☐ N/A

Victim impact statement attached

☐ Yes ☒ No ☐ N/A

Other (Specify)

Note: Actual applications / orders are only attached to prosecution copy of the brief

**Preliminary Brief – Statement Made By Informant**Accused **SUNIULA** v Informant **SHEEHAN****Witness list**

No.	Name	Evidence	Statement obtained	Document attached
Nil				

Additional Information**CRIMINAL PROCEDURE ACT 2009 SECTION 37(2)(d):-**

Persons providing relevant information but not being called as a witness.

1. MCALINDEN, Kielan :

* OCCUPATION :	Speed Camera Operator
* SUMMARY OF EVIDENCE:	Speed Camera Operation

2. PRATER, Daniel :

* OCCUPATION :	Serco Traffic Camera Services Pty Ltd
* SUMMARY OF EVIDENCE:	Person authorised to produce 83A RSA Certificate

Preliminary Brief – Statement Made By Informant

Accused **SUNIULA** v Informant **SHEEHAN**

Exhibit list

No.	Exhibit Description	Produced By	Exhibit Relevance	Police Possession
1.	Authority to Operate prescribed Road Safety Camera :			
	* PRODUCED BY:	Camera Operator/Prosecutor		
	* RELEVANCE:	Authorisation to operate speed measurement device.		
2.	Certificate under section 83A of the Road Safety Act 1986, depicting image of target vehicle :			
	* PRODUCED BY:	Camera Operator/Prosecutor		
	* RELEVANCE:	Image of detected vehicle/offence		
3.	Certification Certificate for Camera :			
	* PRODUCED BY:	Camera Operator/Prosecutor		
	* RELEVANCE:	Evidence that speed measurement device was certified at time of operation.		
4.	Roads Corporation Licence Extract under section 84 Road Safety Act 1986 :			
	* PRODUCED BY:	Camera Operator/Prosecutor		
	* RELEVANCE:	Details drivers licence status of accused.		
5.	Roads Corporation Registration Extract under section 84 Road Safety Act 1986 :			
	* PRODUCED BY:	Camera Operator/Prosecutor		
	* RELEVANCE:	Details registered operator of vehicle.		
6.	Testing Officer's Operating Instructions under section 83A Road Safety Act 1986 :			
	* PRODUCED BY:	Camera Operator/Prosecutor		
	* RELEVANCE:	Details of camera set-up requirements as advised by Testing Officer.		

Additional Information

CRIMINAL PROCEDURE ACT 2009 SECTION 37(2)(e):- Copy of document relevant to alleged offence that prosecution does not intend to tender.

1. Mobile Road Safety Camera Operator Set-Up Notes & Camera Incident Log
2. Correspondence from the accused

Preliminary Brief – Statement Made By Informant

Accused **SUNIULA** v Informant **SHEEHAN**

Statement of alleged facts

Description of alleged offence(s) with reference to supporting evidence. Where relevant provide a description of the background and consequences of the alleged offence.

At **Werribee** on the **07/07/2024** at approximately **1903** hours a Gatso T-Series Mobile prescribed Road Safety Camera (mobile digital speed camera) was set up in accordance with the Testing Officer's Operating Instructions and operated by Mobile Road Safety Camera Operator Kielan MCALINDEN of Serco Traffic Camera Services (Vic) Pty Ltd in **Princes Highway** between **Princes Court and Derrimut Road**, facing in a **westerly** direction.

The Gatso T-Series Mobile prescribed Road Safety Camera is approved for the purposes of s.66 of the Road Safety Act: Road Safety (General) Regulations 2019 r32 m.

At **1916** hours, vehicle registration No. **1HS5XS** was detected at a speed of **75** km/h, (alleged speed **72** km/h) in a **60** km/h zone.

The camera system operates by detecting the passage of vehicles through the radar beam. Apart from the detection of vehicles there was no interference to the radar beam at the time of the offence. The legislative tolerance of 3 kilometres per hour or 3% has been allowed in this matter. There was no interference to other traffic at the time of the offence. The accused was not intercepted. The speed zone complies with the Road Safety Road Rules 2009/2017.

The accused is the registered operator of the vehicle.

Accused: **SUNIULA, Faapo**
TCO Brief Book: **24-B-914589799**

Statement made by accused

Relevant explanations provided by accused including statements of admission, mitigation or remorse (include direct quotes where practicable)

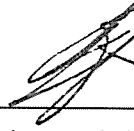
Nil

Preliminary Brief – Statement Made By InformantAccused **SUNIULA****Acknowledgement**

I acknowledge that this statement is true and correct and I make it in the belief that a person making a false statement in the circumstances is liable to the penalties of perjury.

Signature

Signature of person making acknowledgement


Brett SHEEHAN
Leading Senior Constable 28199
Road Policing Enforcement Division

Acknowledgement taken and signature witnessed by me at

Place

Melbourne

Date

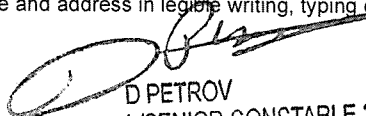
09 DEC 2024

Time

11.30 am

Before(1):

Name and address in legible writing, typing or stamp


D PETROV
L/SENIOR CONSTABLE 27420
ROAD POLICING ENFORCEMENT DIVISION

Traffic Camera Office
Level 1, 277 William Street
Melbourne 3000

(1) A person authorised under Section 38 of the Criminal Procedures Act 2009 to witness statements

A written notice that the informant refuses to disclose any information, document or thing pursuant to s.37(1)(f) of the *Criminal Procedure Act 2009*

The informant refuses to disclose certain information contained in the "Exhibit list - Additional Information", namely the camera detection speed referred to in the Mobile Road Safety Camera Operator's Statement.

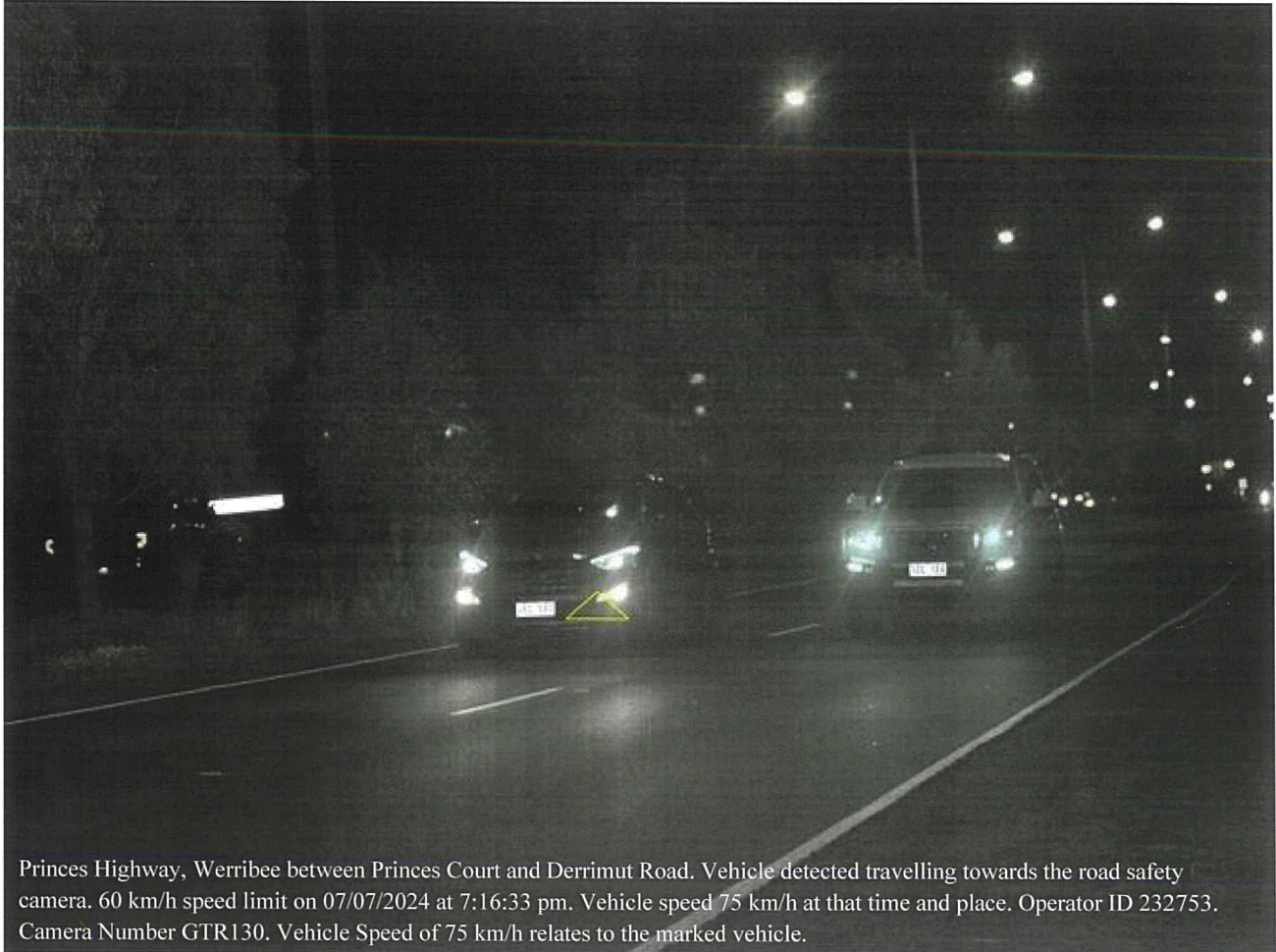
The grounds for such refusal are that the inclusion of the camera detection speed would:

Disclose methods or procedures for preventing, detecting, investigating or dealing with matters arising out of contraventions or evasions of the law the disclosure of which would, or would be reasonably likely to, prejudice the effectiveness of those methods or procedures.

Road Safety Act 1986
Road Safety (General) Regulations 2019
Certificate of an Authorized Person under Section 83A Road Safety Act 1986

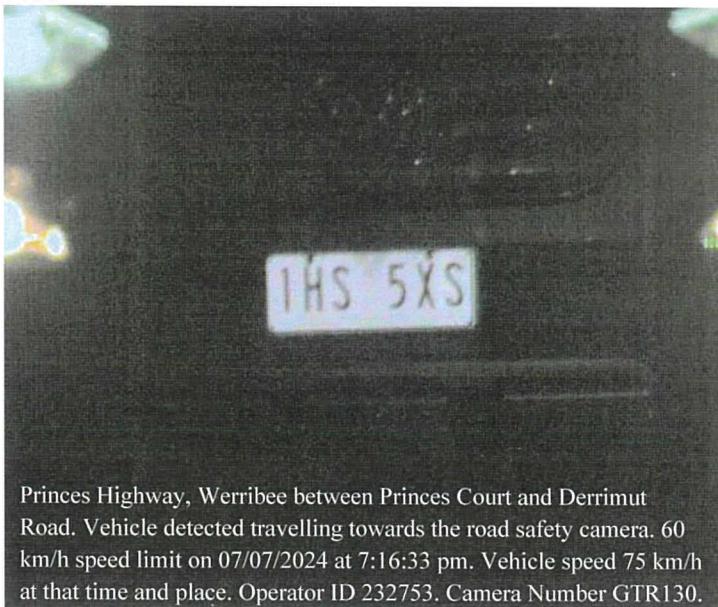
- (a) On 07/07/2024 the **Gatso T-Series Mobile** was a prescribed road safety camera as defined in the Road Safety Act 1986 and was tested, sealed and used in the prescribed manner and produced the images produced in printed form in paragraph (c)
- (b) The printed images and messages, set out in paragraph (c) were produced by a process prescribed for the purposes of section 81 of the Road Safety Act 1986
- (c) Printed Images and Messages:

(c)(1)



Princes Highway, Werribee between Princes Court and Derrimut Road. Vehicle detected travelling towards the road safety camera. 60 km/h speed limit on 07/07/2024 at 7:16:33 pm. Vehicle speed 75 km/h at that time and place. Operator ID 232753. Camera Number GTR130. Vehicle Speed of 75 km/h relates to the marked vehicle.

(c)(2)



Princes Highway, Werribee between Princes Court and Derrimut Road. Vehicle detected travelling towards the road safety camera. 60 km/h speed limit on 07/07/2024 at 7:16:33 pm. Vehicle speed 75 km/h at that time and place. Operator ID 232753. Camera Number GTR130.

Dated at Serco Traffic Camera Services, Level 19, 535 Bourke Street, Melbourne on 28/08/2024

I **DANIEL PRATER**, am the person who caused the printed images and messages produced in paragraph (c) to be printed and I certify that, to the best of my knowledge and belief the matters set out in this Certificate are true and correct and I am a person authorized by the Chief Commissioner of Police for the purposes of section 83A of the Road Safety Act 1986 to issue this Certificate under section 83A(1) of the Road Safety Act 1986.

Signature 

DANIEL PRATER
Serco Traffic Camera Services
Level 19, 535 Bourke Street
Melbourne 3000
VIC

SCHEDULE 3

Regulation 51

CERTIFICATE UNDER SECTION 83

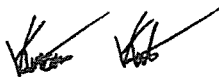
ROAD SAFETY ACT 1986

The road safety camera GTR130 (Serial No.201904000206) was tested in accordance with the Road Safety (General) Regulations 2019 on the 15/08/2023.

The test confirmed that the road safety camera was operating correctly in accordance with the requirements of those Regulations.

The road safety camera has been properly sealed in accordance with those Regulations.

Date: 18/08/2023



Vincent Kulic

Testing Officer, SGS Australia Pty Ltd, a facility accredited in the testing and calibration of speed detectors or road safety cameras by the National Association of Testing Authorities, Australia (NATA)

CAMERA OPERATOR SET-UP NOTES

INCIDENT LOG TO BE SUBMITTED WITH THESE NOTES

AUTHORISED OPERATOR:

ID No: 232753
NAME: KIELAN
MCALINDEN
CALL SIGN: 528

CAMERA:

Camera No: GTR130

Certification Expiry Date: 15 Aug 2024

MOUNTING:

☒ CAR ☐ TRIPOD

Vehicle Registration No: 1ST3WJ

Job No. J-962627

Site No. N20422

MELWAYS/VIC ROADS REF 206C6

EDITION/VERSION: ONLINE

LOCATION: Princes Highway
(STREET / ROAD / HIGHWAY)

Werribee
(SUBURB)

BETWEEN: Princes Court AND
(STREET / ROAD / HIGHWAY / KM POST)

Derrimut Road
(STREET / ROAD / HIGHWAY / KM POST)

CAMERA OPERATION:

Start Date: 07 Jul 2024

Session Start Time: 19:03

Finish Date: 07 Jul 2024

Session Finish Time: 22:04

CAMERA WAS FACING:

West

Session Duration: 180 mins

SPEED LIMIT APPLICABLE TO LENGTH OF ROAD:

60 km/h

Down Time: 0 mins

DENOTED BY:

1. ☒ Speed Limit Signs of 60

60 BEHIND, 80 IN FRONT

(Additional information on or with the sign if applicable)

2. ☐ Default Speed Limit in a built up area of 50km/h

3. ☐ Default Speed Limit for any other length of road 100km/h

4. ☐ Speed Limit Signs of _____ km/h in a _____ direction and default speed limit
where speed signs not applicable. _____ km/h in a _____ direction

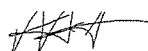
CAMERA DETECTION SPEED WAS SET TO:

67 km /h

I certify that the Gatso T-Series Mobile camera system operated by me on this occasion was set up and used in accordance with the Testing Officer's Operating Instructions pursuant to Regulation 40 of the Road Safety (General) Regulations 2019.

Seals checked and found intact by me on 07 Jul 2024

Authorised Operator:



STATEMENT

Name: Kielan MCALINDEN
Address: Serco Traffic Camera Services (Vic.) Pty. Ltd
Level 19, 585 Bourke Street, Melbourne, Victoria, 3000
Occupation: Mobile Road Safety Camera Operator **Ph:** (03) 9615 5694

STATES:

My name is Kielan MCALINDEN. On the **07/07/2024**, I was employed by Serco Traffic Camera Services (Vic.) Pty Ltd as a Mobile Road Safety Camera Operator.

I am a qualified Gatso T-Series Mobile operator having completed a course of instruction in the use of this device.

I Now Produce my Authority to Operate

At approximately **1903** hours on the **07/07/2024**, I set up a Gatso T-Series Mobile prescribed Road Safety Camera No. **GTR130** in **Princes Highway, Werribee**. The device was set up facing in a **westerly** direction between **Princes Court and Derrimut Road** in a **60 km/h** speed zone as defined by a **Speed Limit Sign of 60 km/h**, which complies with Road Safety Road Rules 2009/2017.

The Gatso T-Series Mobile was set up and used in accordance with the Testing Officer's Operating Instructions and was monitored by me for the duration of this period of operation. The camera system operates by detecting the presence of a vehicle entering or passing through the radar beam. Apart from the detection of vehicles there was no interference to the radar beam at the time of the offence.

I now produce a s.83A of the Road Safety Act 1986 Certificate containing Operating Instructions

This certificate sets out the instructions issued by a testing officer for this camera device and these are instructions that I followed on the date in question.

Whilst setting up the device I also checked the seals and observed that they were intact and that the device had been tested within the previous 12 months as per Regulation 40 Road Safety (General) Regulations 2009 / 2019.

I now produce the Testing Officer's Certificate

I have examined a certificate under Section 83A of the Road Safety Act 1986 which contains a scene image and a close-up image taken at that site on the date in question. I can confirm that the images contained in the section 83A certificate at that place on that date because:

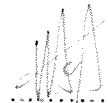
- (a) I set up the camera on that date and at that place;
- (b) The Operator ID stated in the messages that accompany the images in the certificate is my unique camera operator ID; and
- (c) The camera number stated in the messages that accompany the images in the certificate is the number of the camera that I set up on that date at that place.


Kielan MCALINDEN
SCO 232753

These images indicate that at 1916 hours on the 07/07/2024 a vehicle registration no. 1HS5XS, being a 2013 Brown Hyundai Wagon travelled at a detected speed of 75 km/h, (alleged speed of 72 km/h) in a 60 km/h speed zone.

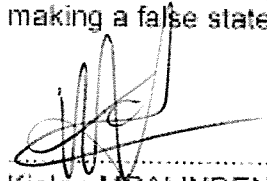
I now produce the s.83A of the Road Safety Act 1986 Certificate

On 23/10/24, I checked and verified the contents of this statement against the contemporaneous notes made by me on the day of the alleged offence.



Kielan MCALINDEN
SCO 232753

I hereby acknowledge that this statement is true and correct and I make it in the belief that a person making a false statement in the circumstances is liable to the penalties of perjury.



Kielan MCALINDEN
SCO 232753

Acknowledgment made and signature witnessed
by me at 6:27 am on the 26 day of Oct 24
2024 at WERUBEE
(location)



(Signature must be witnessed by a member of police)

Name: NEIL PURHISS

RANK/No. SC 4767

STATION. WERUBEE
(must be completed)

Accused: SUNIULA, Faapoi
TCO Brief Book No.: 24-B-914589799



Gatso T-Series Mobile

APRIL 2024

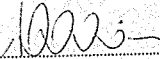
**VICTORIA POLICE
ROAD SAFETY CAMERA & SPEED
DETECTOR AUTHORITY**

No. SMD-1140

Kielan MCALINDEN

232753

**QUALIFIED TO OPERATE THE
FOLLOWING SPEED MEASURING
DEVICES FROM THE DATES SHOWN**


David GRIFFIN
Superintendent

Road Policing Enforcement Division

HOW TO COMPLETE THIS FORM

1. Complete the form relevant to your situation. Do not make payment if submitting this form.

2. Send to:
**Fines Victoria
GPO BOX 1916
Melbourne VIC 3001**

3. You will receive a notification in the mail to let you know the outcome of your application.

ONLINE

You can also complete a Nomination Statement at fines.vic.gov.au/nomination

Your obligation number: **2418188497**
Infringement Notice number: **0229423640**
Vehicle/vessel registration: **1HS5XS (VIC)**
Offence date: **07 JUL 2024**
Offence time: **7:16pm**



2418188497 0229423640 008

NOMINATION STATEMENT

A I state that I was not driving or in possession or control of the vehicle at the time of the offence because (select option):

☐ Someone else was the driver in possession or control of the vehicle at the time of the offence.

☐ I sold this vehicle to someone else or permanently disposed of the vehicle on this date:

/ /

☐ I believe the vehicle or number plates displayed on the vehicle were stolen.

Police Reference No.

☐ I do not know and cannot identify the person in possession of the vehicle at the time of the offence. Note: This statement cannot be selected where the offence involves a taxi-cab.

go to B

go to B

go to D

go to C

B List the details of the person or corporation who was in possession or control of the vehicle at the time of the offence.

Surname / Corporation name

SUNIULA

First name / Corporation ACN

faapo

Address of person / Corporation

23 MUNDARA DRIVE

State

Postcode

Driver licence / Permit Number

095402783

State / Country of issue

Vic Australia

Date of birth

13/04/1965

Taxi DC Number (if applicable)

Note: This statement will be rejected if you don't provide a driver licence number or date of birth for a nominated individual or an ACN for a nominated corporation. If the vehicle is a taxi-cab, you must provide the driver's accreditation number.

go to D

C Tell us what reasonable and diligent enquiries you've made to try to identify the person in possession or control of the vehicle at the time of the offence.

I was in control of the vehicle at the time of picture taken

Note: Failure to keep a record of who was in possession or control of the vehicle involved in the offence is not an adequate reason unless you can prove exceptional circumstances. If the offence involves a taxi-cab, you cannot nominate another person if you are recorded as the driver in the operator's records, and you cannot claim you are not aware of, or cannot identify the driver.

go to D

If you need additional writing space, please attach a signed extra page.

D Confirm your current address and sign to complete nomination statement:

It is an offence under the Road Safety Act 1986 (which may carry a fine in excess of \$9,000 and potential licence loss for an individual, or a fine in excess of \$18,000 for a body corporate) to knowingly provide false or misleading information in a nomination statement. I understand that I may be served with a summons to give evidence in relation to this nomination.

FAAPOI SUNIULA
23 MUNDARA DR
WYNDHAM VALE VIC 3024

Your signature

Date

22/08/2024

Is your address correct? If not, notify VicRoads or your relevant licensing authority of any changes.

OR

REQUEST A COURT HEARING

I decline to have this matter dealt with under these enforcement provisions and want to have the matter heard and determined by a Court. I understand I may receive a summons for this offence. You can also request a court hearing online at fines.vic.gov.au/go-to-court

Obligation Number: 2418188497
Infringement Notice Number: 0229423640

Surname

SUNIULA

First name

faapo

Address (Court summons will be sent here)

23 MUNDARA DRIVE

Wyndham Vale

State

VIC

Postcode

3024

Email

faapo15@yahoo.com.au

Mobile number

0438652476

Your signature

Date

22/08/2024

Road Safety Act 1986
Road Safety (General) Regulation 2019
Certificate of an Authorised Person under s.83A of the Road Safety Act 1986

I Brett SHEEHAN am a person authorized by the Chief Commissioner of Police for the purposes of Section 83A of the Road Safety Act 1986 to issue this Certificate under s.83A(1) of the Road Safety Act 1986. I certify that, [to the best of my knowledge and belief] the matters set out in this certificate are true and correct.

On 07/07/2024 the operating instructions approved by a testing officer in respect of the road safety camera known as the Gatso T-Series Mobile were as set out in this certificate.

Operating Instructions:

1. Park the mobile road safety camera vehicle approximately parallel to the centre of the road and in such a manner that the vehicle is approximately aligned with the plane of the road
2. Measure with a tape measure the distance from the vehicle's rear wheel rim to the edge of the road kerb, road edge or white line (continuous or broken) on the road
3. Measure with a tape measure the distance from the vehicle's front wheel rim to the edge of the road kerb, road edge or white line (continuous or broken) on the road
4. Ensure that these the measurements are within 4.0 cm of each other
5. On the computing device that is within the vehicle, activate the Camera Control Interface on this device
6. Check the screen display on the Camera Control Interface for correct completion of the start-up sequence and that the road safety camera is ready to be set-up for operation
7. Within the Camera Control Interface set/check the following:
 - Set/check vehicle operational details
 - Set/check camera mounting information
 - Set/check speed zone information
 - Set/check location information
 - Set/check camera operational direction
 - Set the measured distance from step number 2 and 3
 - Set camera operational parameters
8. Initiate the start of the operation of the camera and confirm that the road safety camera self-test is completed and that no errors have been identified. Check time information
9. Check date information
10. Check time information

Dated at the Traffic Camera Office,
Level 1, 277 William Street, Melbourne

on04 DEC. 2024.....

Signature: _____

Brett SHEEHAN

Traffic Camera Office

Level 1, 277 William Street

Melbourne, Vic, 3000

**State of Victoria
Road Safety Act 1986
Certificate under Section 84(1)**

CERTIFICATE AS TO REGISTRATION IN CERTAIN NAME

This is to certify that on 07/07/2024 a vehicle with the details set out below was registered to :

Name : FAAPOI SUNIULA
Residential address : 23 MUNDARA DR WYNDHAM VALE 3024
Postal address :

Vehicle details

Vehicle registration number : 1HS5XS
and Check digit : C
Colour / Year / Make / Type : BROWN 2013 HYUNDAI WAGON
Serial number : 04590848
VIN/Chassis number : KMHSU81XSDU145945
Engine number : D4HBDU779518
Expiry date : 29/06/2025
Axles :
GCM, GVM, Tare mass : N/A, N/A, 01668
(values in kg)
Cubic capacity (motor cycle) :
Category/Rate code : PR
Learner approved motorcycle : No
(LAM)

Issued by : Jacinta Thomson
Director
Police Enquiry and Data Sharing Department
Victoria Police
An authorised person for the purposes of s.84 of the Road Safety Act 1986

On : 23/09/2024
Userid : XVPDXM

State of Victoria
Road Safety Act 1986

Certificate Under Section 84(1)

**MATTERS WHICH APPEAR IN OR CAN BE CALCULATED FROM THE RECORDS KEPT BY
THE SECRETARY TO THE DEPARTMENT OF TRANSPORT.**

I CERTIFY THAT ON **7 July 2024**

Mr Faapoi Suniula

OF 23 Mundara Dr WYNDHAM VALE VIC 3024

DATE OF BIRTH 13 April 1965

was licensed under the *Road Safety Act 1986* to drive a Motor Vehicle.

Licence Number: **95402783**
Date of Expiry of Licence: **16 March 2033**

Jacinta Thomson
Director
Police Enquiry and Data Sharing Department
Victoria Police

An authorised person for the purposes of s.84 of the Road Safety Act 1986

User ID: landel

Dated: 23 September 2024

State of Victoria
Road Safety Act 1986

Certificate Under Section 84(1)

**MATTERS WHICH APPEAR IN OR CAN BE CALCULATED FROM THE RECORDS KEPT
BY THE SECRETARY TO THE DEPARTMENT OF TRANSPORT.**

I CERTIFY THAT **MR FAAPOI SUNIULA**
OF **23 MUNDARA DR, WYNDHAM VALE**
DATE OF BIRTH **VIC 3024** NUMBER: **95402783**
13/4/1965

ORIGIN	DATE	OFFENCE AND PENALTY
WERRIBEE MAGISTRATES CT	04/04/2017	EXCEEDING 40KM/H SPEED LIMIT BY LESS THAN 10KM/H DATE OF OFFENCE: 01/08/2016 FINED \$190 REHEARING LODGED
SUNSHINE MAGISTRATES CT (REHEARING)	01/06/2018	EXCEEDING 40KM/H SPEED LIMIT BY LESS THAN 10KM/H DATE OF OFFENCE: 01/08/2016 CHARGE STRUCKOUT
WERRIBEE MAGISTRATES CT	04/04/2017	EXCEEDING 110 KPH SPEED LIMIT SIGN BY LESS THAN 10 KPH DATE OF OFFENCE: 17/07/2016 FINED \$190 REHEARING LODGED
SUNSHINE MAGISTRATES CT (REHEARING)	01/06/2018	EXCEEDING 110 KPH SPEED LIMIT SIGN BY LESS THAN 10 KPH DATE OF OFFENCE: 17/07/2016 CHARGE STRUCKOUT
SUNSHINE MAGISTRATES CT	26/04/2016	REFUSING PRELIMINARY BREATH TEST DATE OF OFFENCE: 02/04/2015 FINED \$1200 CAR LICENCE OR PERMIT CANCELLED AND DISQUALIFIED FOR 2 YEARS FROM 26/04/2016

User ID: landel

Page 1 of 3
DATED AT MELBOURNE

cont. next page
23/09/2024

09 DEC 2024
Brett SHEEHAN
Leading Senior Constable 28199
Road Policing Enforcement Division

Jacinta Thomson
Director
Police Enquiry and Data Sharing Department
Victoria Police

An authorised person for the purposes of s.84 of the Road Safety

CONVRPT

Act 1986

State of Victoria
Road Safety Act 1986

Certificate Under Section 84(1)

**MATTERS WHICH APPEAR IN OR CAN BE CALCULATED FROM THE RECORDS KEPT
BY THE SECRETARY TO THE DEPARTMENT OF TRANSPORT.**

I CERTIFY THAT

MR FAAPOI SUNIULA

OF

23 MUNDARA DR, WYNDHAM VALE

DATE OF BIRTH

VIC 3024

13/4/1965

NUMBER: **95402783**

ORIGIN	DATE	OFFENCE AND PENALTY
MELBOURNE COUNTY COURT	13/12/2016	BIKE LICENCE OR PERMIT CANCELLED AND DISQUALIFIED FOR 2 YEARS FROM 26/04/2016 NOT TO BE RELICENSED EXCEPT BY ORDER OF A MAGISTRATE APPEAL LODGED PERMISSION TO DRIVE GRANTED 04/05/2016
SUNSHINE MAGISTRATES CT	19/12/2011	CAR LICENCE OR PERMIT CANCELLED AND DISQUALIFIED FOR 2 YEARS FROM 26/04/2016 BIKE LICENCE OR PERMIT CANCELLED AND DISQUALIFIED FOR 2 YEARS FROM 26/04/2016 NOT TO BE RELICENSED EXCEPT BY ORDER OF A MAGISTRATE ORDERS OF THE MAGISTRATES COURT ARE SET ASIDE AND IN THEIR STEAD THE FOLLOWING ORDERS ARE MADE. FINED \$1200. ALL LICENCES/PERMITS CANCELLED/DISQUALIFIED FOR 2 YEARS FROM 26/4/2016.
SUNSHINE MAGISTRATES CT	12/11/2012	EXCEEDING 100 KPH SPEED LIMIT SIGN BY LESS THAN 10 KPH DATE OF OFFENCE: 26/01/2011 FINED \$149 REHEARING LODGED

User ID: landel

Page 2 of 3
DATED AT MELBOURNE

cont. next page
23/09/2024

Jacinta Thomson
Director
Police Enquiry and Data Sharing Department
Victoria Police

An authorised person for the purposes of s.84 of the Road Safety

Certificate Under Section 84(1)

NUMBER: 95402783

An authorised person for the purposes of s.84 of the Road Safety



VICTORIA POLICE

**NIL PRIOR
CRIMINAL
CONVICTIONS**

BACKING SHEET

BACKING SHEET

BACKING SHEET

BACKING SHEET

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Traffic Camera Office